

ELIZABETH II



1985 CHAPTER xii

An Act to amend the Shops Act 1950 in its application to certain premises in the city of Manchester; to confer further powers upon the Greater Manchester County Council; and for other purposes. [13th June 1985]

WHEREAS an exhibition and conference centre (hereinafter referred to as "the centre") is being provided in the city of Manchester and the Greater Manchester County Council is a party to the arrangements under which the centre is to be developed and provided:

And whereas it is expedient that certain provisions of the Shops Act 1950 should not apply to the centre during the course of functions at those premises or when facilities in respect of those functions are being provided or removed: 1950 c. 28.

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed: 1972 c. 70.

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Citation.

1.—(1) This Act may be cited as the Greater Manchester Act 1985.

1981 c. ix.

(2) The Greater Manchester Act 1981 and this Act may be cited together as the Greater Manchester Acts 1981 and 1985.

Interpretation.

2. In this Act, unless the context otherwise requires—

“the centre” means the exhibition and conference centre provided on and comprising that land in the city of Manchester which is bounded by Lower Mosley Street, Windmill Street, Watson Street and Great Bridgewater Street;

“the Council” means the Greater Manchester County Council;

“exhibition” includes any demonstration or display in the nature of an exhibition or any demonstration or display of any sport, game or contest or any entertainment or performance of a similar nature;

“stand” means any platform, structure, space or other area provided at the centre for exhibition, trade fair or conference purposes.

Application
of Shops Act
1950 to
exhibition and
conference
centre.

1950 c. 28.

3.—(1) Sections 1, 2, 8 and 47 of the Shops Act 1950 shall not apply to—

(a) a shop to which this section applies at the centre during the course of an exhibition, trade fair or conference at the centre and in the period when works or facilities in respect of that exhibition, trade fair or conference are being provided or removed; and

(b) a stand provided at the centre, whether in a building or in the open, while used for the purposes, and as part, of an exhibition, trade fair or conference at the centre.

1971 c. 78.

(2) A shop to which this section applies is a permanent shop used for the carrying on of any retail trade or business and comprising or forming part of any building erected at the centre in pursuance of planning permission granted or deemed to be granted under or by virtue of Part III of the Town and Country Planning Act 1971 if that shop is being used for the purposes of, or in connection with, an exhibition, trade fair or conference at the centre and is being used, as the case may be, either—

(a) as part of that exhibition, trade fair or conference; or

- (b) for the serving of persons attending or exhibiting at any exhibition, trade fair or conference, or engaged in the provision or removal of works or facilities in respect of that exhibition, trade fair or conference.

4.—(1) In this section expressions to which meanings are assigned by the Local Government Superannuation Regulations 1974 have the same respective meanings as in those regulations and references to regulations are references to those regulations.

Division of
county
superannuation
fund.
S.I. 1974/520.

(2) (a) In its application to the Council regulation B1 shall have effect so as to require the Council to establish and administer from the relevant date, a further superannuation fund to be known as "the Admission Agreement, etc. Superannuation Fund" (hereinafter in this section referred to as "the second fund").

(b) The regulations shall with necessary modifications apply to the second fund as they apply to the Greater Manchester County Council Superannuation Fund (hereinafter in this section referred to as "the main fund").

In paragraph (a) above "the relevant date" means the date from which the Council resolve to establish the second fund.

(3) (a) Upon the establishment under subsection (2) above of the second fund that fund shall be the appropriate superannuation fund for all pensionable employees and other persons who prior to such establishment have been entitled to participate in the benefits of the main fund by virtue of the operation of regulations B4, B4A or J8 (admission agreements for employees of other bodies) or who thereafter are admitted by virtue of the operation of any of the said regulations.

(b) Following the establishment and during currency of the second fund, any employee admitted by the Council under an agreement to which regulation B4 or B4A applies shall be admitted to participate in that fund and not in the main fund.

(4) (a) On the establishment of the second fund the Council shall cease to hold as part of the main fund assets to a value to be specified by an actuary, which shall then become part of the second fund and the composition of the assets to be transferred to the second fund shall be at the discretion of the Council and to such extent as the Council may determine those assets shall be solely money.

(b) As soon as reasonably practicable after the establishment of the second fund, the Council shall obtain from an actuary a certificate specifying, in respect of each admitted body whose

former and current employees become members of the second fund, in relation to the period beginning on the day on which the second fund is established and ending with the day on which the certificate under regulation B8 of the regulations applicable to such body in force immediately before the establishment of the second fund would have ceased to have effect, the matters referred to in regulation B8.

(c) For the period mentioned in paragraph (b) above regulation C5 of the regulations shall in relation to an admitted body apply as if for references to a certificate under regulation B8 there were substituted references to the certificate required by that paragraph.

(5) When, in accordance with regulation B7 as applied by this section, the Council obtain from an actuary valuations of the main fund and the second fund as at the valuation date next following the relevant date, they shall also obtain from him a statement specifying the value to which further assets should in his opinion cease to be held by them as part of the main fund and become part of the second fund for the purpose of placing the second fund in the same position, so far as may be, as if the apportionment required by this section had been effected on the relevant date.

(6) On a day to be selected by them, which shall be as soon as is reasonably practicable after they obtain the statement mentioned in subsection (5) above, the Council shall cease to hold as part of the main fund assets to the value specified, which shall then become part of the second fund.

(7) The Council shall bear the costs of the apportionment required by this section.

(8) In this section, "the apportionment required by this section" means the division of the main fund as provided for in subsections (4)(a), (5) and (6) above.

(9) The Council may in connection with the second fund and out of the moneys of that fund, insure pensionable employees in the second fund against death in service to an amount not exceeding pensionable remuneration for one year payable by way of death gratuity under regulation E11.

(10) (a) The Council may if they think fit wind up the second fund and transfer the assets thereof to the main fund, and thereupon—

- (i) the pension rights in the second fund of all pensionable employees and persons entitled to participate in that fund shall be transferred to and become rights in and entitlements to participate in the main fund;

- (ii) the main fund shall become the appropriate superannuation fund for those employees and persons; and
- (iii) the foregoing provisions of this section shall cease to have effect.

(b) As soon as reasonably practicable after such a transfer of assets, the Council shall obtain from an actuary a certificate specifying, in respect of each admitted body whose former and current employees had then been members of the second fund in respect of the period beginning on the day on which the assets of the second fund are transferred to the main fund and ending with the day on which the certificate under regulation B8 of the regulations applicable to such body immediately before the transfer of assets would have ceased to have effect, the matters referred to in regulation B8.

(c) For the period mentioned in paragraph (b) above, regulation C5 of the regulations shall in relation to an admitted body apply as if for references to a certificate under regulation B8 there were substituted references to the certificate required by that paragraph.

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CHAPTER xii

ARRANGEMENT OF SECTIONS

Section

1. Citation.
2. Interpretation.
3. Application of Shops Act 1950 to exhibition and conference centre.
4. Division of county superannuation fund.